

Statutory Criminal Law Reference Matrix

Cross-Reference Mapping of IPC & CrPC Provisions to the Bharatiya Nyaya Sanhita (BNS) & Bharatiya Nagarik Suraksha Sanhita (BNSS)

1. OFFENCES AGAINST WOMEN & CHILDREN (GENDER PROTECTION MATRIX)			
IPC SECTION & OFFENCE	VICTIM AGE / CRITERIA MATRIX	STATUTORY PUNISHMENT MANDATED FOR THE OFFENCE	BNS / BNSS EQUIVALENT
Sec. 166A Public servant disobeying law / failing to record FIR.	Any vulnerable person / female victim of specified offences.	Rigorous imprisonment for not less than 6 months to 2 years , and fine. Automatic liability for police refusal on sensitive crimes.	Sec. 199 BNS
Sec. 228A Disclosure of identity of sexual offence victims.	Any Age (Victims of rape and related sexual offences).	Imprisonment for a term which may extend to 2 years , and fine. Absolute confidentiality mandate.	Sec. 72 BNS
Sec. 376 Punishment for Rape (Basic Provision).	Adult Female.	Rigorous imprisonment for not less than 10 years , which may extend to imprisonment for life , and fine.	Sec. 64 BNS
Sec. 376AB Rape on a girl child.	Child under 12 years.	Rigorous imprisonment for not less than 20 years , or life imprisonment (remainder of natural life), or death , and fine.	Sec. 65(2) BNS
Sec. 376DA Gang rape on a minor girl.	Child under 16 years.	Imprisonment for the remainder of natural life , and fine. Joint and several liability for all participants.	Sec. 70(2) BNS
Sec. 376DB Gang rape on a child.	Child under 12 years.	Imprisonment for the remainder of natural life , or death , and fine.	Sec. 70(2) BNS
Sec. 376E Punishment for repeat offenders of rape.	Any Age (Female).	Imprisonment for the remainder of natural life , or death for individuals convicted iteratively.	Sec. 71 BNS

IPC SECTION & OFFENCE	VICTIM AGE / CRITERIA MATRIX	STATUTORY PUNISHMENT MANDATED FOR THE OFFENCE	BNS / BNSS EQUIVALENT
Sec. 357B (CrPC) Victim Compensation.	Any Age / Criteria.	Mandates that compensation paid by the court to the victim under acid attack or rape shall be in addition to any punitive fine.	Sec. 396 BNSS
Sec. 357C (CrPC) Medical Treatment.	Any Age / Gender.	Mandates immediate, free first-aid or medical treatment across all public/private hospitals for acid attack or rape victims.	Sec. 397 BNSS

2. OTHER PENAL OFFENCES (IPC MATRIX)

IPC SECTION & OFFENCE	VICTIM AGE / CRITERIA MATRIX	STATUTORY PUNISHMENT MANDATED FOR THE OFFENCE	BNS EQUIVALENT
Sec. 146 Rioting.	Any Person / Public Peace.	Imprisonment for a term which may extend to 2 years , or fine, or both (under regulatory Section 147). Invoked when force/violence is used by unlawful assembly.	Sec. 191 BNS
Sec. 309 Attempt to commit suicide.	Any Person.	Simple imprisonment up to 1 year , or fine, or both. Note: Extensively restricted by the Mental Healthcare Act, 2017.	Sec. 226 BNS (Only if done to escape public duty)
Sec. 327 Voluntarily causing hurt to extort property.	Any Person.	Imprisonment for a term which may extend to 10 years , and a fine. Bound to extortion or constraining to illegal acts.	Sec. 119 BNS
Sec. 374 Unlawful compulsory labour.	Any Person.	Imprisonment for a term which may extend to 1 year , or fine, or both. Compelling anyone to work against their will.	Sec. 146 BNS
Sec. 377 Unnatural Offences.	Consenting Adults.	Repealed / Decriminalized by the Supreme Court in <i>Navtej Singh Johar (2018)</i> . Non-consensual acts / bestiality are addressed under alternative codes.	Omitted from BNS

3. EVIDENCE & GENERAL PROVISIONS MATRIX

OLD SECTION REF	TARGET CRITERIA	STATUTORY PROVISION MANDATED	BSA / BNS EQUIVALENT
Sec. 53A (CrPC) Medical Exam of Rape Accused.	Accused Individual.	Mandatory detailed statutory checklist including DNA profiling, injury mark mappings, and sample preservation within standard operational timelines.	Sec. 52 BNSS
Sec. 26 (IEA) Police Custodial Confessions.	Accused Individual.	Confessions made by an accused while under the active custody of police are completely inadmissible unless recorded in the immediate presence of a Magistrate.	Sec. 23 BSA
Sec. 42 (IPC) Definition of Special Law.	Legal Framework.	Statutorily defines a "Special Law" as a distinct piece of legislation applicable exclusively to a specific, defined subject matter (e.g., POCSO Act, NDPS Act).	Sec. 2 BNS

4. CRIMINAL PROCEDURE MATRIX (CRPC)

CRPC SECTION & PROCEDURE	CONTEXT CRITERIA	STATUTORY MANDATE / LEGAL PROCESS	BNSS EQUIVALENT
Sec. 154 Information in cognizable cases (FIR).	Any Informant / Victim.	Mandates oral/written information recording. Dictates absolute compulsory immediate registration for sexual offences against women, featuring audio-video records.	Sec. 173 BNSS
Sec. 161 Examination of witnesses by police.	Witnesses / Victims.	Empowers police to verbally examine individuals. No signature of the witness is required on text records. Statements cannot be used as substantive trial evidence.	Sec. 180 BNSS
Sec. 164 Recording of confessions & statements.	Victims / Accused.	Statements recorded before a Magistrate under oath. Execution is mandatory for victims of sexual offences (Sub-sec. 5A). Confessions must be strictly voluntary.	Sec. 183 BNSS
Sec. 173 Final Investigation Report (Charge-sheet).	Investigating Officer.	Mandatory submission of the final report to the competent Magistrate. Statutory directives command completion of child sexual abuse investigations within 2 months .	Sec. 193 BNSS
Sec. 197 Prosecution of Judges & public servants.	Judges, Magistrates, Public Servants.	Provides safe procedural shields; no Court can legally take cognizance of an offence allegedly committed during official duty execution without prior Government Sanction .	Sec. 218 BNSS
Sec. 438 Direction for grant of Anticipatory Bail.	Accused Apprehending Arrest.	Empowers the High Court or Court of Session to issue binding operational mandates to release an individual on bail prior to the execution of an actual arrest .	Sec. 482 BNSS
Sec. 439 Special powers of higher courts regarding bail.	Accused in Custody.	Provides concurrent, non-restrictive, expansive powers to the High Court and Court of Session to release accused on bail or radically modify conditions set by lower Magistrates.	Sec. 483 BNSS

 **Critical Enforcement Rule (Section 166A IPC / Section 199 BNSS):** If an administrative public servant or police officer willfully turns away a victim, neglects legal protocols, or delays recording an FIR for the specified offenses against women and minors under Section 166A(c), they face an automatic, mandatory statutory penalty of **6 months to 2 years of rigorous imprisonment**. Age metrics or procedural ambiguity cannot be leveraged to delay immediate registration.